

August 7, 2026
Dept. 9
Civil Tentative Rulings

7.	23CV1430	DARSHAN PATEL ET AL VS. BENJAMIN LOSCH ET AL
ATTORNEY WITHDRAWAL		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 7, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

Counsel for Defendants, Daniel Scales and D Scales Construction, Inc., has filed a motion to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362.

A declaration on Judicial Council Form MC-052 accompanies the motion, as required by California Rules of Court, Rule 3.1362, stating that there is a deterioration of the working relationship with client.

Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362 allow an attorney to withdraw after notice to the client. Proof of service of the motion on Defendants at their last known was filed on July 16, 2026.

There is a Case Management Conference scheduled for December 15, 2026, which is not listed in the proposed Order. Counsel shall submit a revised Order that includes the upcoming hearing date as required by California Rules of Court, Rule 3.1362(e).

TENTATIVE RULING #7:

ABSENT OBJECTION, THE MOTION IS GRANTED, CONTINGENT ON COUNSEL'S FILING OF A PROPOSED ORDER (FORM MC-053) THAT MEETS THE REQUIREMENTS OF CALIFORNIA RULES OF COURT, RULE 3.1362(E). COUNSEL IS DIRECTED TO SERVE A COPY OF THE SIGNED ORDER ON THE CLIENT AND ALL PARTIES THAT HAVE APPEARED IN THE CASE IN ACCORDANCE WITH CALIFORNIA RULES OF COURT, RULE 3.1362(e).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

August 7, 2026
Dept. 9
Civil Tentative Rulings

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

August 7, 2026
Dept. 9
Civil Tentative Rulings

8.	25CV2079	CODY UPSON VS. NATHAN STAMM ET AL
CONSOLIDATION		

9.	26CV0473	AMY FRANK VS. NATHAN STAMM ET AL
CONSOLIDATION		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 7, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On June 10, 2026, Plaintiff, Amy Frank ("Plaintiff Frank"), filed a Motion to Consolidate Actions. Defendants, Nathan Stamm and Rachelle Stamm, joined Plaintiff Frank's Motion to Consolidate on June 22, 2026. Plaintiff, Cody Upson, joined Plaintiff's Frank Motion to Consolidate on July 1, 2026. Defendants, Candice Ortega and Brett Chesson, have not joined the motion.

Plaintiff Frank requests an order pursuant to Code of Civil Procedure § 1048(a) consolidating *Cody Upson v. Nathan Stamm, Rachelle Stamm*, Case No. 25CV2079 (the 'Lead Case') with *Amy Frank v. Nathan Stamm, Rachelle Stamm*, Case No. 26CV0473.

Code of Civil Procedure § 1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

Plaintiff Frank alleges that the actions involve common questions of fact in that both actions arise from the same December 7, 2024, motor vehicle collision and involve the same Defendants. Both Plaintiffs were passengers in the same vehicle at the time of the crash. The claims are based upon the same occurrence, will rely upon substantially the same witnesses and evidence, and concern recovery from a single insurance policy whose limits have already been tendered. As policy proceeds are limited and the main dispute concerns allocation of those proceeds, proceeding in separate actions creates a risk of inconsistent rulings and unnecessary duplication of judicial resources.

Plaintiff Frank further argues that consolidation would avoid unnecessary duplication of evidence, as well as unnecessary costs and duplication of evidence in deposing the same witnesses, treaters, experts, and doctors for each Plaintiff.

In considering a motion for consolidation, the Court considers the following:

August 7, 2026
Dept. 9
Civil Tentative Rulings

1. Timeliness of the motion: i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether *discovery* in one or more of the cases has proceeded without all parties present;
2. Complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury;
3. Prejudice: i.e., whether consolidation would adversely affect the rights of any party.

California Rules of Court, Rule 3.350 (Consolidation of Cases) provides further requirements for consolidation of cases:

(a) Requirements of motion

(1) A notice of motion to consolidate must:

- (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;
- (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and
- (C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

- (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;
- (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and
- (C) Must have a proof of service filed as part of the motion.

Absent a stipulation to consolidate, a noticed and written motion to consolidate is required. *Sutter Health Uninsured Pricing Cases* (2009) 171 Cal.App.4th 495, 514.

The Court is not in receipt of the notice of motion in the Lead Case and the motion was not filed in the Lead case. The Court is inclined to grant Plaintiff Frank's motion to consolidate upon stipulation of all Parties or the filing of the notice of motion and motion in the Lead Case in compliance with California Rules of Court, Rule 3.350.

TENTATIVE RULING #8 AND 9:

ABSENT A STIPULATION TO CONSOLIDATE BY ALL PARTIES, APPEARANCES ARE REQUIRED FRIDAY, AUGUST 28, 2026, AT 8:30 AM IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.